

DECISION No 1386/2013/EU OF THE EUROPEAN PARLIAMENT AND OF THE COUNCIL

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DECISION No 1386/2013/EU OF THE EUROPEAN PARLIAMENT AND OF THE COUNCIL

of 20 November 2013

on a General Union Environment Action Programme to 2020 'Living well, within the limits of our planet'
(Text with EEA relevance)

THE EUROPEAN PARLIAMENT AND THE COUNCIL OF THE EUROPEAN UNION,

Having regard to the Treaty on the Functioning of the European Union, and in particular Article 192(3) thereof,

Having regard to the proposal from the European Commission,

After transmission of the draft legislative act to the national parliaments,

Having regard to the opinion of the European Economic and Social Committee (1),

Having regard to the opinion of the Committee of the Regions (2),

Acting in accordance with the ordinary legislative procedure (3),

Whereas:

(1)

The Union has set itself the objective of becoming a smart, sustainable and inclusive economy by 2020 with a set of policies and actions aimed at making it a low-carbon and resource-efficient economy (4).

(2)

Successive environment action programmes have provided the framework for Union action in the field of the environment since 1973.

(3)

The Sixth Community Environment Action Programme (5) ('6th EAP') ended in July 2012, but many measures and actions launched under that programme continue to be implemented.

(4)

The final assessment of the 6th EAP concluded that the programme delivered benefits for the environment and provided an overarching strategic direction for environment policy. Despite those achievements, unsustainable trends still persist in the four priority areas identified in the 6th EAP: climate change; nature and biodiversity; environment and health and quality of life; and natural resources and wastes.

(5)

The final assessment of the 6th EAP highlighted some shortcomings. The achievement of the objectives set out in the Seventh Environment Action Programme ('7th EAP') therefore requires the full commitment of the Member States and the relevant Union institutions and the willingness to take responsibility for the

delivery of the programme's intended benefits.

(6)

According to the report of the European Environment Agency entitled 'The European environment - state and outlook 2010' ('SOER 2010') a number of major environmental challenges still remain, and serious repercussions will ensue if nothing is done to address them.

(7)

Global systemic trends and challenges, related to population dynamics, urbanisation, disease and pandemics, accelerating technological change and unsustainable economic growth add to the complexity of tackling environmental challenges and achieving long-term sustainable development. Ensuring the Union's long-term prosperity requires taking further action to address those challenges.

(8)

It is essential that Union priority objectives for 2020 are established, in line with a clear long-term vision for 2050. This would also provide a stable environment for sustainable investment and growth. The 7th EAP should build on policy initiatives in the Europe 2020 strategy (6), including the Union climate and energy package (7), the Commission Communication on a Roadmap for moving to a low-carbon economy in 2050 (8), the EU Biodiversity Strategy to 2020 (9), the Roadmap to a Resource Efficient Europe (10), the Innovation Union Flagship Initiative (11) and the European Union Strategy for Sustainable Development.

(9)

The 7th EAP should help to achieve the environment and climate change targets on which the Union has already agreed and to identify policy gaps where additional targets may be required.

(10)

The Union has agreed to achieve a reduction of at least 20 % of its greenhouse gas (GHG) emissions by 2020 (30 %, provided that other developed countries commit themselves to comparable emissions reductions and that developing countries contribute adequately according to their responsibilities and respective capabilities); to ensure that 20 % of energy consumption comes from renewable energy by 2020; and to achieve a 20 % cut in primary energy use compared with projected levels, by improving energy efficiency (12).

(11)

The Union has agreed to halt the loss of biodiversity and the degradation of ecosystem services in the Union by 2020, and restore them in so far as feasible, while stepping up the Union contribution to averting global biodiversity loss (13).

(12)

The Union supports the aims of halting global forest cover loss by 2030 at the latest and of reducing gross tropical deforestation by at least 50 % by 2020 compared to 2008 levels (14).

(13)

The Union has agreed to achieve good status for all Union waters, including freshwater (rivers and lakes, groundwater), transitional waters (estuaries/deltas) and coastal waters within one nautical mile of the coast by 2015 (15).

(14)

The Union has agreed to achieve good environmental status in all marine waters of the Union by 2020 (16).

(15)

The Union has agreed to achieve levels of air quality that do not give rise to significant negative impacts on, and risks to, human health and the environment (17).

(16)

The Union has agreed to achieve, by 2020, the objective that chemicals are produced and used in ways that lead to the minimisation of significant adverse effects on human health and the environment (18).

(17)

The Union has agreed to protect the environment and human health by preventing or reducing the adverse impacts of the generation and management of waste and by reducing the overall impact of resource use and improving the efficiency of such use, by applying the following waste hierarchy: prevention, preparing for re-use, recycling, other recovery, and disposal (19).

(18)

The Union has agreed to stimulate the transition to a green economy and to strive towards an absolute decoupling of economic growth and environmental degradation (20).

(19)

The Union has agreed to strive to achieve a land degradation neutral world in the context of sustainable development (21).

(20)

Pursuant to Article 191(2) of the Treaty on the Functioning of the European Union (TFEU), Union policy on the environment aims at a high level of protection taking into account the diversity of situations in the various regions of the Union, and is based on the precautionary principle and on the principles that preventive action should be taken, that environmental damage should, as a priority, be rectified at source and that the polluter should pay.

(21)

Action to deliver the priority objectives of the 7th EAP should be taken at different levels of governance, in accordance with the principle of subsidiarity.

(22)

Transparent engagement with non-governmental actors is important in ensuring the success of the 7th EAP and the achievement of its priority objectives.

(23)

Not only do biodiversity loss and the degradation of ecosystems in the Union have important implications for the environment and human well-being, they also have impacts on future generations and are costly for society as a whole, particularly for economic actors in sectors that depend directly on ecosystem services.

(24)

There is significant scope for reducing GHG emissions and enhancing energy and resource efficiency in the Union. This will ease pressure on the environment and bring increased competitiveness and new sources of growth and jobs through cost savings from improved efficiency, the commercialisation of innovations and better management of resources over their whole life cycle. In order to realise this potential, a more comprehensive Union policy on climate change should recognise that all sectors of the economy have to contribute to tackling climate change.

(25)

Environmental problems and impacts continue to pose significant risks for human health and well-being, whereas measures to improve the state of the environment can be beneficial.

(26)

The full and even implementation of the environment acquis throughout the Union is a sound investment for the environment and human health, as well as for the economy.

(27)

Union environment policy should continue to draw on a sound knowledge base and should ensure that the evidence underpinning policy-making, including cases where the precautionary principle has been invoked, can be better understood at all levels.

(28)

Environment and climate objectives should be supported by adequate investments, and funds should be spent more effectively in line with those objectives. The use of public- private initiatives should be encouraged.

(29)

Environmental integration in all relevant policy areas is essential in order to reduce pressures on the environment resulting from the policies and activities of other sectors and to meet environmental and climate-related targets.

(30)

The Union is densely populated, and over 70 % of its citizens live in urban and peri-urban areas and face specific environmental and climate-related challenges.

(31)

Many environmental challenges are global and can only be fully addressed through a comprehensive global approach, while other environmental challenges have a strong regional dimension. This requires cooperation with partner countries, including neighbouring countries and overseas countries and territories.

(32)

The 7th EAP should support the implementation, within the Union and at international level, of the outcomes of, and commitments undertaken at, the 2012 United Nations Conference on Sustainable Development (Rio + 20) and which aim to transform the global economy into an inclusive and green economy in the context of sustainable development and poverty reduction.

(33)

An appropriate mix of policy instruments would enable businesses and consumers to improve their understanding of the impact of their activities on the environment and to manage that impact. Such policy instruments include economic incentives, market-based instruments, information requirements as well as voluntary tools and measures to complement legislative frameworks and to engage stakeholders at different levels.

(34)

All measures, actions and targets set out in the 7th EAP should be taken forward in accordance with the principles of smart regulation (22) and, where appropriate, subject to a comprehensive impact assessment.

(35)

Progress towards meeting the objectives of the 7th EAP should be monitored, assessed and evaluated on the basis of agreed indicators.

(36)

In accordance with Article 192(3) TFEU, the priority objectives in respect of Union policy on the environment should be set out in a general action programme.

(37)

For the priority objectives set out in this Decision, a number of measures and actions are identified in the 7th EAP set out in the Annex, with a view to achieving those objectives.

(38)

Since the objective of this Decision, namely to set up a General Union Environment Action Programme setting out priority objectives, cannot be sufficiently achieved by the Member States but can rather, by reason of the scale and effects of that action programme be better achieved at Union level, the Union may adopt measures, in accordance with the principle of subsidiarity as set out in Article 5 of the Treaty on European Union. In accordance with the principle of proportionality, as set out in that Article, this Decision does not go beyond what is necessary in order to achieve that objective,

HAVE ADOPTED THIS DECISION:

Article 1

A general Union action programme in the field of the environment for the period up to 31 December 2020 ('the 7th Environment Action programme' or '7th EAP'), as set out in the Annex, is hereby adopted.

Article 2

1. The 7th Environment Action Programme shall have the following priority objectives:

(a)

to protect, conserve and enhance the Union's natural capital;

(b)

to turn the Union into a resource-efficient, green and competitive low-carbon economy;

(c)

to safeguard the Union's citizens from environment-related pressures and risks to health and well-being;

(d)

to maximise the benefits of Union environment legislation by improving implementation;

(e)

to improve the knowledge and evidence base for Union environment policy;

(f)

to secure investment for environment and climate policy and address environmental externalities;

(g)

to improve environmental integration and policy coherence;

(h)

to enhance the sustainability of the Union's cities;

(i)

to increase the Union's effectiveness in addressing international environmental and climate-related challenges.

2. The 7th EAP shall be based on the precautionary principle, the principles of preventive action and of rectification of pollution at source and the polluter-pays principle.

3. The 7th EAP shall contribute to a high level of environmental protection and to an improved quality of life and well-being for citizens.

4. All measures, actions and targets set out in the 7th EAP shall be proposed and implemented in accordance with the principles of smart regulation and, where appropriate, subject to a comprehensive impact assessment.

Article 3

1. The relevant Union institutions and the Member States are responsible for taking appropriate action, with a view to the delivery of the priority objectives set out in the 7th EAP. Action shall be taken with due account of the principles of conferral, subsidiarity and proportionality, in accordance with Article 5 of the Treaty on European Union.

2. Public authorities at all levels shall work with businesses and social partners, civil society and individual citizens in implementing the 7th EAP.

Article 4

1. The Commission shall ensure that the implementation of the relevant elements of the 7th EAP is monitored in the context of the regular monitoring process of the Europe 2020 Strategy. This process shall be informed by the European Environment Agency's indicators on the state of the environment as well as indicators used to monitor progress in achieving existing environment and climate-related legislation and targets such as the climate and energy targets, biodiversity targets and resource efficiency milestones.

2. The Commission shall also carry out an evaluation of the 7th EAP. That evaluation shall be based, inter alia, on the European Environment Agency's report on the state of the environment and on a consultation with interested stakeholders. The Commission shall submit a report based on this evaluation to the European Parliament and to the Council in due course before the end of the 7th EAP.

3. In the light of that evaluation and other relevant policy developments, the Commission shall, if appropriate, present a proposal for an 8th EAP in a timely manner, with a view to avoiding a gap between the 7th EAP and the 8th EAP.

Article 5

This Decision shall enter into force on the twentieth day following that of its publication in the Official Journal of the European Union.

Done at Strasbourg, 20 November 2013.